

		could require the witness to be subject to cross-examination at trial.” (<i>Target Nat’l Bank v. Rocha</i> (2013) 216 Cal. App. 4th Supp. 1, 7.) Here, Defendants have not demonstrated that these declarations are unavailable to be cross-examined at trial. The Declaration of Alberto Mosqueda Cruz was withdrawn through Plaintiffs’ counsel on March 16, 2026, so the court did not consider this declaration. The court OVERRULES Plaintiffs’ objections to the Declaration of Defendants’ expert, Levon Massmanian. The court SUSTAINS Plaintiffs’ objections to the Declarations of Imelda Landeros and Maria Robledo Perez on the grounds that their declarations are in English, when they are unable to read and write in English. The court OVERRULES Plaintiffs’ remaining objections to the employee declarations provided by Defendants in support of their opposition to this Motion. The court OVERRULES Plaintiffs’ objections to the Declaration of Alma Beatriz Cervantes, AMPOC and Embee’s HR Representative. III. <u>Request for Judicial Notice</u> The court DENIES Defendants’ request for judicial notice of a motion and order striking the testimony of Plaintiffs’ expert, Dr. Kriegler in another cases as it is irrelevant to the issues in this case. Courts are not required to take judicial notice of items if they are not “necessary, helpful, or relevant.” (<i>Jordache Enters., Inc. v. Brobeck, Phleger & Harrison</i> (1998) 18 Cal. 4th 739, 748.) Plaintiffs are ordered to give notice of this ruling.
15	30-2023-01347301 Oglander vs. Tax Rise, Inc.	Plaintiff Daniel Oglander’s (“Plaintiff”) Motion to Compel Defendant Essam Abdullah’s (“Defendant” or “Abdullah”) Further Responses to Requests for Production, Set Three is GRANTED IN PART as to Request For Production (“RFP”) No. 36 (as outlined below), and GRANTED as to RFP Nos. 27-29, and 33-35, and 37-39. IT IS ORDERED THAT Defendant shall provide Plaintiff with further, code-compliant responses to Plaintiff’s RFP Nos. 27-29, and 33-39, and any

		non-privileged responsive documents, within thirty (30) days of this ruling. The SAC alleges that “Abdullah is integrally involved in managing and running TaxRise and participated directly in the unfair business practices and false advertising addressed herein.” (SAC ¶ 10.) It further alleges that: Defendant Abdullah directly participated in the UCL violations at issue herein, by, among other things, conceiving of TaxRise’s business strategy and marketing, devising or approving TaxRise’s sales practices, making or approving the decision not to follow the HSSA and/or to issue full refunds to Canceled Agreement Sub-Class members who sought cancellation, and preparing, participating in the preparation of, and approving the content of TaxRise’s misleading service agreements containing misleading legal jargon, which continue Abdullah’s past pattern, condemned by the State, of misusing legal jargon to deceive consumers. (SAC ¶ 147.) The discovery requests seek documents and communications relevant to the financial relationship between entity defendants TaxRise and MIADVG, the management of these entities, and witness contact information regarding the tax relief services provided, as well as the marketing and communication with customers regarding the services provided. The court finds that the subject discovery is relevant to these allegations and are likely to lead to the discovery of admissible evidence, and that Plaintiff has demonstrated good cause for further responses to these requests. Defendant provided only boilerplate objections to each of these requests. Before turning to the specific requests, the court shall address some of Defendant’s broader objections. Defendant argues that the subject discovery is impermissibly overbroad, but cites to a case that is clearly distinguishable as it involved a clearly overbroad discovery request on a non-party that was untethered to the claims in the case. <i>Calcor Space Facility, Inc. v. Superior Ct.</i> (1997) 53 Cal. App. 4th 216, 222, involved “a blanket demand” to essentially “[p]roduce everything in your possession which in any way relates to gun mounts.” The court noted that request required the responding party “to search its extensive files, at many locations, to see what it can find to fit [the plaintiff’s] definitions, instructions and categories.” (<i>Id.</i>) The court found such discovery improper, noting that “particularly when
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		dealing with an entity which is not even a party to the litigation, the court should attempt to structure discovery in a manner which is least burdensome to such an entity.” (<i>Id.</i> [emphasis added].) The court also noted that the plaintiff’s “six pages of ‘definitions’ and ‘instructions’ [was] particularly obnoxious.” (<i>Id.</i> at 223.) The court noted that “[a]s between parties to litigation and nonparties, the burden of discovery should be placed on the latter only if the former do not possess the material sought to be discovered.” (<i>Id.</i> at 225.) Defendant contends that Plaintiff is required to produce evidence to support Plaintiff’s explanation of the relevance and good cause for the requested discovery. However, the fact-specific showing of relevance does not, as a matter of law, require evidence such as declarations, but can be based upon the nature of the claims at issue. (<i>Kirkland v. Superior Ct.</i> (2002) 95 Cal. App. 4th 92, 97 [finding that discovery regarding an SEC investigation that disclosed materials regarding state of mind and relevant transactions was permissible based on the fraud claims at issue].) Defendant also argues that the discovery is impermissible because the requests were already propounded on the entity defendants, but provides no basis for denying Plaintiff’s discovery requests for this reason alone. “The court shall limit the scope of discovery if it determines that the burden, expense, or intrusiveness of that discovery clearly outweighs the likelihood that the information sought will lead to the discovery of admissible evidence.” (CCP § 2017.020(a).) Defendant has not demonstrated that the burden outweighs the need for the requested discovery. Defendant argues that some of the requests implicate confidential business interests for the entity defendants. However, Defendant has not shown that those interests outweigh Plaintiff’s need for the discovery. “[T]he party claiming the privilege [based on trade secret] has the burden of establishing its existence.” (<i>Bridgestone/Firestone, Inc. v. Superior Ct.</i> (1992) 7 Cal. App. 4th 1384, 1393.) “Thereafter, the party seeking discovery must make a prima facie, particularized showing that the information sought is relevant and necessary to the proof of, or defense against, a material element of one or more causes of action presented in the case, and that it is reasonable to conclude that the information sought is essential to a fair resolution of the lawsuit.” (<i>Id.</i>) “It is then up to the holder of the privilege to demonstrate any
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		claimed disadvantages of a protective order.” (<i>Id.</i>) “[T]he burden is upon the trade secret claimant to demonstrate that an alternative to disclosure will not be unduly burdensome to the opposing side and that it will maintain the same fair balance in the litigation that would have been achieved by disclosure.” (<i>Id.</i>) Defendant has not carried his initial burden of showing any privilege, as he makes only vague statements about potential proprietary information that may be responsive to the requests. Even if privilege was implicated by the discovery requests, Plaintiff has made a prima facie showing of relevance, and Defendant has not shown that any alternative to disclosure would be justified. The court will now turn to the specific discovery requests. RFP Nos. 27-29 seek documents and communications concerning the financial relationship between TaxRise and MIADVG, including MIADVG’s compensation from TaxRise from customer services fees or otherwise. Plaintiff states that the requested documents are relevant to Plaintiff’s allegations that MIADVG aided and abetted TaxRise’s fraudulent conduct and violated the CLRA and UCL by, among other things, transmitting service agreements to class members. Plaintiff contends that the requested materials are relevant to the extent of MIADVG’s knowledge and participation in the alleged fraudulent scheme, and are relevant to Plaintiff’s request for restitutionary disgorgement of all fees and monies paid to Defendants in connection with TaxRise’s “tax relief” services as they will reflect how much of the service fees class members paid TaxRise went to MIADVG. Defendant complains that this request is not tied specifically to Plaintiff’s transaction, but as this is a class action, discovery is not limited to Plaintiff’s specific transaction. The court finds that Plaintiff has established good cause for the discovery and a further response is required. RFP Nos. 33-35 seek documents supporting Abdullah’s sworn statements that he did not directly manage TaxRise or MIADVG, including documents identifying persons other than Defendant who directly managed these companies. Plaintiff asserts that the requested documents are directly relevant to Plaintiff’s fraud, CLRA, and UCL claims against Abdullah, which are based on Abdullah’s alleged direct participation in TaxRise’s unlawful sales practices. Plaintiff contends that to the extent persons other than Abdullah directly managed
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		TaxRise and/or MIADVG, the identity of such persons is relevant because they have knowledge of discoverable matter including the policies and practices followed by those organizations and the identity and responsibilities of persons within these organizations who were involved in or possess information about the alleged misconduct. Plaintiff asserts that such information is relevant to Plaintiff's claims, class certification (e.g., typicality, commonality, and predominance), Defendants' affirmative defenses (e.g., bona fide error, fair competition, and reasonableness and good faith), and identifying Doe Defendants. The court finds that Plaintiff has established good cause for the discovery and a further response is required. RFP No. 36 seeks documents identifying persons other than Abdullah who directly participated in formulating TaxRise's marketing strategies. Plaintiff contends the requested documents are directly relevant to Plaintiff's fraud, CLRA, and UCL claims against Abdullah, which are based on Abdullah's alleged direct participation in TaxRise's unlawful sales practices. Plaintiff asserts that the identity of persons other than Abdullah who participated in formulating TaxRise's marketing strategies is also relevant because such persons have knowledge of discoverable matter including the content, creation, implementation, function, scope, and purpose of TaxRise's sales practices and marketing strategies. Plaintiff argues that the content, creation, implementation, function, scope, and purpose of TaxRise's marketing strategies are relevant to Plaintiff's claims, class certification (e.g., typicality, commonality, and predominance), Defendants' affirmative defenses (e.g., bona fide error, fair competition, and reasonableness and good faith), and identifying Doe Defendants. Defendant complains that the discovery is duplicative of previous discovery, but the court finds that the requests are not duplicative. Plaintiff concedes that this request should be narrowed in time as to the liability period (starting March 14, 2019.) The court finds that Plaintiff has established good cause for the discovery and a further response is required, but the request shall be limited in time to the liability period.
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	RFP No. 37 seeks “All template letters that you approved, signed, sent, or caused to be sent to TaxRise tax relief customers during the APPLICABLE PERIOD.” Plaintiff argues that the requested documents are directly relevant to Plaintiff’s fraud, CLRA, and UCL claims against Abdullah, which are based on Abdullah’s alleged direct participation in TaxRise’s unlawful sales practices. Plaintiff contends that template letters approved or signed by Abdullah are relevant to Abdullah’s knowledge and participation in TaxRise’s fraudulent scheme as well as Abdullah’s intent, willfulness, and credibility. Plaintiff contends that they are also relevant to TaxRise’s liability for false advertising, class certification (e.g., typicality, commonality, and predominance), Defendants’ affirmative defenses (e.g., bona fide error, fair competition, and reasonableness and good faith). Defendant argues that this request is overbroad, but the court finds that it is not overbroad as it is limited to only template letters sent to TaxRise relief customers. The court finds that Plaintiff has established good cause for the discovery and a further response is required. RFP No. 38 seeks “DOCUMENTS sufficient to identify the names and last known addresses, last known phone numbers and last known email addresses of all current and former TaxRise employees who had a role in TaxRise’s tax relief services during the APPLICABLE PERIOD ...” Plaintiff argues that TaxRise employees who had a role in TaxRise’s tax relief services are percipient witnesses with knowledge of discoverable matter, including Defendants’ policies, procedures and practices, Defendants’ management structure, Defendants’ intent, and Defendants’ culpability for the wrongful conduct alleged in the SAC. Defendant also argues that these requests implicate significant privacy rights, but the case cited by Defendant held that such contact information is discoverable. “The disclosure of the names and addresses of potential witnesses is a routine and essential part of pretrial discovery.” (<i>Puerto v. Superior Ct.</i> (2008) 158 Cal. App. 4th 1242, 1249–50.) The right of privacy in the California Constitution (art. I, § 1), “protects the individual's <i>reasonable</i> expectation of privacy against a <i>serious</i> invasion.” (<i>Id.</i> at 1250 [emphasis in original].) “California courts balance the public need against the weight of the right.” (<i>Id.</i>) “[T]he invasion of privacy must be serious in nature, scope, and actual or potential impact.” (<i>Id.</i> at 1251.)
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		However, with respect to the contact information of percipient witnesses, “a percipient witness's willingness to participate in civil discovery has never been considered relevant—witnesses may be compelled to appear and testify whether they want to or not.” (<i>Id.</i> at 1251-1252.) Accordingly, the court finds that the requested discovery does not implicate any privacy concerns that should limit discovery. RFP No. 39 seeks: “DOCUMENTS sufficient to describe the job duties and responsibilities of all TaxRise tax relief-related job positions (e.g., “financial analyst,” “case manager,” “resolution officer”) that have existed at any time during the APPLICABLE PERIOD.” Plaintiff contends that the requested information is relevant to identifying percipient witnesses as knowing the duties assigned to each tax relief-related position will allow Plaintiff to determine which categories of employees are likely to possess discoverable information regarding representations, training, call recording practices, refund policies, and compliance efforts. Plaintiff also contends that the requested information is relevant to class certification concerning whether the alleged misconduct is the product of uniform policies and practices or individualized exercises of discretion. Plaintiff argues that the requested information is also relevant to the liability of individual officers and managers as it is likely to reveal who participated in, authorized, and directed Defendants’ alleged misconduct. Defendant argues that RFP Nos. 38 and 39 are overbroad. However, the requests are limited to employees “who had a role in TaxRise’s tax relief services” and held “tax relief-related job positions.” The court finds that Plaintiff has established good cause for the discovery and a further response is required. Plaintiff is ordered to give notice of this ruling.
16	30-2025-01533351 Bell vs. Veracity Research Co., L.L.C.,	Defendant Veracity Research Co., L.L.C.’s motion to compel arbitration is GRANTED. Plaintiff Tiffany Bell is ordered to arbitrate her individual claims. The class claims are dismissed without prejudice. This case is otherwise STAYED pending completion of arbitration. An ADR Review Hearing is scheduled for February 3, 2027 at 9:00 a.m. The parties must file a Joint Status Report at least 16